

DRAFT AMENDMENT NO. 2 TO DATA PROCESSING AGREEMENT

Northwind Systems, Inc. and Acme Corporation — NEGOTIATION DRAFT

Document ID: NW-DPA-ACME-2026-A2-DRAFT-v4

Counterparty: Acme Corporation (Delaware, USA)

Proposed Effective Date: 1 October 2026

Status: DRAFT – NOT EXECUTED. NOT LEGALLY BINDING.

Circulated: 4 September 2026 (for review by Acme legal)

NOTICE

This document is a negotiation draft circulated for comment. It has **not** been signed by either party and creates no obligations. The currently binding retention obligation remains that set out in Amendment No. 1 dated 20 August 2026 until such time as this draft is executed.

1. PROPOSED LOG RETENTION

1.1 The parties are discussing extending permitted retention of application and diagnostic logs to three hundred and sixty-five (365) days to support extended forensic investigation.

1.2 *[Acme legal comment: not agreed. 365 days is unacceptable; we remain at 30. — M.R., 9 Sep 2026]*

2. PROPOSED RESIDENCY

2.1 The parties are discussing permitting storage in the United States. *[Acme legal comment: rejected.]*

3. EXECUTION

3.1 This draft shall have no force or effect unless and until signed by authorised representatives of both parties.

SIGNATURES

NORTHWIND SYSTEMS, INC. By: _____ (unsigned)

ACME CORPORATION By: _____ (unsigned)

No e-signature envelope exists for this document.